

KMVTECH EDUCATION**INL1 · Module 7****State responsibility**

Lesson: Breach and reparation

Student Lesson Notes

Study with the online lessons. Prefer primary sources (Constitution, statutes, treaties, cases). © KMVTECH Education · September 2026.

1. CORE IDEA

Every internationally wrongful act of a State engages its responsibility (ILC Articles on Responsibility of States for Internationally Wrongful Acts — ARSIWA). An act is wrongful when it is attributable to the State and constitutes a breach of an international obligation.

Attribution covers organs, persons exercising governmental authority, and certain conduct directed or controlled by the State. Circumstances precluding wrongfulness include consent, self-defence, force majeure, distress and necessity (narrow).

Consequences: continued duty of performance, cessation, non-repetition, and reparation (restitution, compensation, satisfaction).

- Invocation may be by the injured State or, in limited cases, by States other than the injured State (erga omnes obligations).

2. DETAILED RULES AND APPLICATION

Example: failure to protect foreign nationals or to prevent cross-border harm can engage responsibility if due diligence standards are breached.

Attribution + breach = wrongful act; then examine defences and content of reparation.

3. UGANDA / PRACTICE, METHOD AND TRAPS

Uganda may be the injured State or the responsible State in regional and international claims. Domestic courts do not directly apply ARSIWA, but the logic informs diplomatic protection and investment arbitration.

Exam trap: treating every harmful act by a private person as automatically attributable to the State without control or organ analysis.

Method: (1) identify the obligation, (2) test attribution, (3) confirm breach, (4) check circumstances precluding wrongfulness, (5) map reparation.

Links to use of force (primary rules) and dispute settlement (secondary claims).

SELF-TEST QUESTIONS

Attempt these before the platform practice quiz.

1. What two elements make an internationally wrongful act?
2. Name three modes of attribution.
3. List the main forms of reparation.
4. What is an erga omnes obligation?
5. Give one circumstance precluding wrongfulness.
6. Why is private conduct not automatically State conduct?

Exam tip: Attribution and breach before remedies.

CHECKLIST BEFORE YOU LEAVE THIS LESSON

- I can state the main instrument(s) or Cap number.
- I can explain the core rule in my own words.
- I can apply the rule to a short Uganda / regional fact pattern.
- I know the common exam trap for this topic.
- I know how this lesson links to the next module.

Next step: Complete the online practice quiz for this lesson, then continue on the platform.